

IT Vendor Agreement

This Agreement is made on 20 January 2024 between Riverty GmbH, Rheinstraße 99, 76532 Baden-Baden, Germany (hereinafter "Riverty") and Arvato Systems GmbH, An der Autobahn 200, 33333 Gütersloh, Germany (hereinafter "Vendor"), together the "Parties".

1. Scope of Services

Riverty shall provide the services described in Annex 1 (the "Services") to Vendor in accordance with this Agreement and the service levels agreed therein. Vendor shall provide all information reasonably required for the performance of the Services.

2. Term and Termination

The Agreement commences on the Effective Date for a fixed term of three (3) years. Thereafter either Party may terminate it at any time on six (6) months' notice to the end of a calendar quarter. Termination for good cause without notice remains reserved.

3. Fees and Payment

Vendor shall pay the fees set out in Annex 2. Invoices are payable within thirty (30) days of receipt without deduction. Late payments accrue interest at nine (9) percentage points above the base rate of the Deutsche Bundesbank.

4. Limitation of Liability

Each Party's total liability arising out of this Agreement, whether in contract, tort or otherwise, is capped at EUR 250,000 per contract year. This cap does not apply to damages caused wilfully, to injury of life, body or health, or to breaches of confidentiality.

5. Confidentiality

The Parties undertake to treat as strictly confidential all business and trade secrets disclosed to them and not to make them available to third parties without prior written consent. Disclosure to professional advisers bound by statutory secrecy is permitted.

6. Data Protection

Where Riverty processes personal data on behalf of Vendor, the Parties shall conclude a data processing agreement pursuant to Article 28 of the General Data Protection Regulation (GDPR). Both Parties shall implement appropriate technical and organisational measures to protect personal data.

7. Governing Law

This Agreement shall be governed by the laws of the Federal Republic of Germany, excluding the UN Convention on Contracts for the International Sale of Goods (CISG).

8. Dispute Resolution

The courts of Baden-Baden shall have exclusive jurisdiction over any dispute arising out of or in connection with this Agreement.

9. Force Majeure

Neither Party shall be liable for any failure to perform its obligations where such failure results from events beyond its reasonable control, including natural disasters, war, pandemics or governmental action, provided that the affected Party notifies the other without undue delay.

10. Assignment

Neither Party may assign or transfer this Agreement, in whole or in part, without the prior written consent of the other Party, which shall not be unreasonably withheld.

11. Audit Rights

Vendor may, upon thirty (30) days' written notice and no more than once per calendar year, audit Riverty's compliance with this Agreement during normal business hours. Riverty shall provide reasonable assistance and access to relevant records.

12. Anti-Corruption and Compliance

Each Party shall comply with all applicable anti-corruption and anti-bribery laws, including Sections 299 and 331 et seq. of the German Criminal Code (StGB) and the UK Bribery Act 2010, and shall maintain adequate procedures to prevent bribery by persons associated with it.

13. Change of Control

Either Party may terminate this Agreement with immediate effect if the other Party undergoes a change of control, meaning the acquisition of more than fifty percent (50%) of its voting rights by a third party.

14. Notices

All notices under this Agreement shall be in writing and delivered by registered mail or e-mail to the addresses set out above. Notices are deemed received on the next business day.

For Riverty GmbH:

Managing Director

For Arvato Systems GmbH:

Authorised Signatory